

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY 2 GO CARGO CORP.,
Complainant,

v.

DOCKET NO. 25-14

OAK WAY CARGO, LLC,
Respondent.

COMPLAINANT’S MOTION TO MODIFY SCHEDULING ORDER DEADLINES

Complainant, Way 2 Go Cargo Corp. (“Complainant”) through undersigned counsel, files its Motion to Modify Scheduling Order Deadlines, and states as follows:

1. Complainant served its initial requests for production and interrogatories to Respondent on November 26, 2025.
2. The parties engaged in extensive briefing on Respondent’s discovery objections in March, culminating in a 20-page order by the ALJ overruling Respondent’s objections to 35 individual discovery requests. (Order Granting in Part and Denying in Part Complainant’s Motion to Overrule Respondent’s Objections and Compel Better Answers, at 20).
3. Respondent’s counsel withdrew seven days after that order, and after new counsel appeared for Respondent a month later, Respondent was ordered to comply with the March discovery order and produce its Supplemental Discovery Responses by May 15, 2026.
4. Respondent did not comply entirely with its obligation to produce supplemental discovery and continued producing documents through the morning of the final session of its corporate representative’s deposition on June 16, 2026.
5. The deadline for completion of fact discovery was on June 19, 2026. (Order Granting Fourth Joint Motion to Extend Scheduling Order Deadlines, at 1).

6. On June 23, 2026, Respondent filed its Motion to Compel Discovery, Compel the Continued Deposition of the Corporate Representative of Way 2 Go Cargo Corp. and Extend Case Deadlines (“MTC”), seeking to resolve discovery issues after the close of discovery.

7. In an effort to reach a resolution on the MTC, Complainant agreed to supplement its discovery only as to certain requests requesting factual information to support Complainant’s claims for reparations, in light of new information obtained at the June 16th deposition of Respondent’s corporate representative.¹ In an effort to accommodate Respondent’s counsel’s travel plans, Complainant agreed to a brief extension of the deadlines. (Response to MTC, at 5).

8. After a status conference on July 6, 2026, the ALJ entered an Order Following Status Conference requiring Complainant to produce supplemental documents and discovery answers by July 15, 2026, and requiring the parties to file an agreed-upon motion proposing a remaining case schedule.

9. During the meet-and-confer call between the undersigned and Ronald Hink, counsel for Respondent, on July 21, 2026, it became clear that the parties could not agree on a schedule for the remainder of the proceeding.

10. First, Respondent claims to be dissatisfied with the amount of detail provided in Respondent’s supplemental interrogatory answers and therefore is seeking to re-depose Complainant’s corporate representative. The time to do that has passed. A request to compel better answers is untimely and additional discovery is unwarranted at this time.

11. Second, Respondent proposes an unreasonably lengthy 75-day briefing period just

¹ The testimony provided and documents produced by Respondent on June 16, 2026, inevitably would be relied on by Complainant in its presentation of evidence in its final briefing, and counsel for Respondent was adamant that it was entitled to know before the final briefing, how Complainant intended to rely on the evidence provided by Respondent.

on the issue of whether reparations are available, after which Respondent intends to conduct additional discovery before the final briefing even begins.

12. The ALJ should deny the MTC as moot and modify the existing scheduling order deadlines as set forth below for the reasons that follow.

I. The Motion to Compel is Moot as Additional Discovery is not Warranted.

As argued in its Response in Opposition to Respondent's MTC, Complainant reasserts that Respondent should not be given the opportunity to further delay a final adjudication of this matter by claiming it "has been deprived of the opportunity to obtain any advance notice of the damages," (MTC, at 5) after having delayed compliance with its own discovery obligations and waited until June 23 to seek an extension of the June 19 discovery deadline.

Complainant has answered the interrogatories addressing reparations with enough detail to put Respondent on notice of the evidence being relied upon to *factually* support the amount of damages sought – Respondent's own documents and testimony. Complainant further clarified in its supplemental answers that it does not seek any measure of damages in this proceeding that requires the opinion of an expert. Moreover, respondent has cited no authority to support its request to conduct another deposition of Complainant's representative.

The measure of reparations is a question of law (i.e. whether Complainant is entitled to reparations equal to the payment diverted to Respondent and whether the reparations should be equitably set off by expenses Respondent incurred). The amount of reparations is a question of fact (i.e. the evidence presented by Claimant to support the total value of reparations requested). If Respondent is dissatisfied with Complainant's interrogatory answers regarding reparations, Respondent has the opportunity to challenge the sufficiency of Complainant's legal argument and evidence in its final briefing. There is no singular trial event at which Respondent will be

“surprised” to learn about the evidence supporting Complainant’s request for reparations. While Respondent faces no prejudice in continuing to the final briefing stage, Complainant is prejudiced by the Respondent’s proposed uncapped extension beginning with a 75-day briefing period on a single element of Complainant’s claim.

II. Separate Briefing on Reparations Would Result in Undue Delay.

Complainant appreciates that in light of the relief requested in Respondent’s MTC, including an extension of several weeks to conduct the continued deposition of Complainant’s representative, it initially seemed to be efficient to instead determine the issue of entitlement to reparations before the parties continued with discovery. In light of Respondent’s proposed timeline for briefing, Complainant objects entirely to the initial resolution of the reparation entitlement issue, as it would have the opposite effect if conducted according to Respondent’s proposed timeline. Therefore, if the ALJ agrees to deny the MTC as moot, Complainant proposes the following Scheduling Order Deadlines:

August 28, 2026	Complainant’s Brief, Proposed Findings of Fact, and Appendix
September 25, 2026	Respondent’s Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
October 16, 2026	Complainant’s Reply Brief and Responses to Proposed Findings of Fact

Alternatively, if the ALJ is inclined to grant the MTC to allow for an additional deposition of Complainant’s representative, Complainant proposes the following Scheduling Order Deadlines:

August 5, 2026	Close of Discovery and Completion of Depositions
September 4, 2026	Complainant’s Brief, Proposed Findings of Fact, and Appendix
October 5, 2026	Respondent’s Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
October 23, 2026	Complainant’s Reply Brief and Responses to Proposed Findings of Fact

WHEREFORE, the Complainant, Way 2 Go Cargo Corp. respectfully requests the Administrative Law Judge deny the Respondent's Motion to Compel Discovery, Compel the Continued Deposition of the Corporate Representative of Way 2 Go Cargo Corp., and Extend Case Deadlines as moot and adopt the first schedule set forth above, or alternatively, adopt the second schedule set forth above.

Dated: July 22, 2026.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at ron@hink.legal on this 22nd day of July 2026.

BY: /s/ Jennifer S. Roldan
Jennifer Santos Roldan, Esq.